EVICTION STRATEGY · REFERENCE

Writs of Possession vs. Money Judgments

Why landlords should prioritize possession — and collect rent separately — in today's credit-reporting landscape

Executive summary

In 2017, the major credit bureaus stopped reporting civil judgments — including money-damage awards from eviction lawsuits — on consumer credit reports. That change drastically reduced the deterrent a money judgment once carried. Today a landlord gains little strategic advantage by attaching money damages to an eviction ruling. The more effective path: **regain possession quickly through a writ of possession without a money award, and pursue the unpaid balance separately through specialized collection channels** that still carry reporting leverage.

The impact of credit-reporting changes

- **Money judgments are now invisible on credit files.** Since the bureaus dropped civil judgments in 2017, an eviction-related money award no longer appears on a tenant's consumer credit report — so it no longer changes tenant behavior at the courthouse.
- **The judgment stops being an incentive to settle.** Because the award won't hit their credit, a tenant facing eviction has little reason to resolve the debt during the court process.
- **Reporting leverage moves to the collection channel.** Placed with an agency, the unpaid balance is reported as a **collection tradeline** — to Equifax and Experian, and to **Experian RentBureau**, the rental-payment database landlords screen against. That reporting can remain up to seven years and follows the tenant to their next lease application.

Why writs without money awards are more effective

ADVANTAGE	WHY IT MATTERS
Speed of regaining control	Removing money damages reduces litigation complexity; courts issue possession judgments faster when no monetary claim is attached. Faster turnover cuts vacancy loss and prevents further property misuse.
Cleaner legal process	Splitting possession from damages avoids procedural delays. Money claims invite counterclaims and tenant defenses that drag out the eviction timeline.
Focused objective	The primary business need is to recover the unit — not to litigate an often-uncollectible debt. Rent recovery is pursued separately, through an agency that can report the balance.

Obtaining a writ of possession without a money judgment

1. **Grounds for eviction beyond rent.** Unauthorized occupants, property damage, illegal activity or other lease violations can support possession.
2. **Notice to vacate.** Proper notice in compliance with state law is still required.
3. **Court filing.** File for possession only (unlawful detainer / forcible entry & detainer).
4. **Judgment for possession.** Present evidence of the lease violation; the court grants possession without awarding money damages.
5. **Writ of possession.** The sheriff or constable enforces the order and restores possession of the unit.

Possession vs. money judgment — and the strategic insight

Possession judgment: grants the right to retake the property. **Money judgment:** awards back rent or damages.

Strategic insight: pursue possession first to get the unit back fast and clean; handle the money separately, through a collection agency with reporting capability. You get the asset back sooner *and* keep real, compliant leverage on the balance — instead of a money judgment that no longer moves a credit file.

How Southwest Recovery fits

Once you have possession, place the unpaid rent, damages and fees with us. We locate the former tenant through daily skip tracing, work the balance on pure contingency, report the collection tradeline for lasting leverage, and escalate to legal enforcement only with your authorization. You focus on turning the unit; we focus on the money.

Get the unit back — and still recover the balance

Send us a representative sample of your post-eviction ledger and we will show you exactly how we would work it — on contingency, with no upfront cost.

Call (866) 551-4684 · sdietz@swrecovery.com · swrecovery.com

Provided for general informational purposes and not legal advice; eviction procedure and remedies vary by state — consult counsel. Southwest Recovery Services does not collect consumer debt in California, Oregon or Washington.